
Contractor's Supplementary Claim — Dispute of EOT-01 Assessment

Nandira River Bridge Project — Package NRB-4

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Contract No.:	NHIA/NRB4/CW/2020-01
From:	Contractor, Project Manager, Sagara Constructions Pvt. Ltd.
To:	Engineer, Meridian Engineering Consultants

Subject: Supplementary Claim — Extension of Time — Pier P3 Utility Conflict — Dispute of Determination ENG-NRB4-0019

We refer to the Engineer's determination ENG-NRB4-0019 dated 25-Sep-2021, granting an extension of the Time for Completion of 10 weeks in respect of the Pier P3 utility conflict addressed in our Notice CTR-NRB4-0021 and detailed particulars CTR-NRB4-0028.

We accept the Engineer's finding of entitlement under Sub-Clause 8.4(c). However, we do not accept that 10 weeks reflects the true net critical path impact of this event, for the following reason.

ENG-NRB4-0019 credits the resequencing carried out under Site Instruction SI-NRB4-014 with substantially mitigating the delay, on the basis that works continued at Piers P1, P2, P4 and P5 while Pier P3 was suspended. We submit that this mitigation was materially less effective than assumed, because the resequenced works themselves fell substantially within the Monsoon Period defined at Particular Conditions Part D.1 (1 June to 30 September), during which our productivity at Piers P1, P2, P4 and P5 was significantly reduced by sustained heavy rainfall, as recorded in our Daily Progress Reports for the period and set out in the rainfall data we are compiling separately for the Engineer's review.

Had the mitigating works at Piers P1, P2, P4 and P5 proceeded at dry-season productivity, a materially greater portion of the Pier P3 suspension period would have been absorbed without programme impact. Since that mitigation was itself constrained by monsoon conditions, we submit that the net critical path delay attributable to the Pier P3 utility conflict is understated in ENG-NRB4-0019, and we claim a further extension of 6 weeks, in addition to the 10 weeks already granted, making 16 weeks in total.

We will submit rainfall records and an updated programme analysis in support of this claim within the coming weeks, and reserve our right to supplement these particulars further.

Regards,
Project Manager

Sagara Constructions Pvt. Ltd.